

Provisions of Naval Discipline Act to be amended.	Nature of Amendment.
Section eighty-two— <i>cont.</i>	After the words "such prison," "the prison," or "said prison," wherever those words occur, there shall be inserted the words "or naval detention quarters."
Section eighty-three	After the word "correction" there shall be inserted the words "or of any naval detention quarters."

CHAPTER 42.

An Act to amend the Law relating to the Occupation and Ownership of Land in Ireland, and for other purposes relating thereto. [3rd December 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

LAND PURCHASE FINANCE.

1.—(1) In the case of advances made in pursuance of future purchase agreements, three pounds ten shillings shall be substituted for three pounds five shillings as the rate of the purchase annuity under section forty-five of the Irish Land Act, 1903 (in this Act referred to as the Act of 1903).

Alteration of amount of purchase annuity and of rate of interest payable to National Debt Commissioners.
3 Edw. 7. c. 37.

(2) So far as respects advances made for future purchase agreements, the rate of interest to be paid by the Land Commission to the National Debt Commissioners under section thirty-six, and by the Congested Districts Board to the Land Commission under section seventy-two, of the Act of 1903, shall be three per cent. per annum, instead of two-and-three-quarters per cent. per annum.

(3) The National Debt Commissioners shall, in the accounts kept by them of the Irish Land Purchase Fund, distinguish between advances made in pursuance of pending purchase agreements and advances made in pursuance of future purchase agreements.

2.—(1) The power of the Treasury to create stock for the purpose of raising money required for the Irish Land Purchase Fund (including the Land Purchase Aid Fund) shall include power to create a new capital stock to be called guaranteed three per cent. stock, and the Treasury may at any time create for that purpose either guaranteed two-and-three-quarters per cent. stock or guaranteed three per cent. stock, as they think fit.

Power to raise new guaranteed three per cent. stock, and provision as to investment by savings bank depositors in stock.

(2) The provisions of the Act of 1903 relating to stock shall apply to guaranteed three per cent. stock created under this section as they apply to the guaranteed two-and-three-quarters per cent. stock created under that Act, with the substitution of three per cent. for two-and-three-quarters per cent. as the rate of dividend, and of thirty years from the passing of this Act for thirty years from the commencement of the Act of 1903 as the period after the expiration of which the stock is redeemable. •

56 & 57 Vict.
c. 69.

(3) The definition of Government stock in subsection (2) of section five of the Savings Bank Act, 1893, shall be read as if stock issued under the Act of 1903 or this Act were included in the First Schedule to the said Savings Bank Act, 1893.

Power to make
advances by
guaranteed
stock under
certain circum-
stances.

3.—(1) Notwithstanding anything in section twenty-seven of the Act of 1903, advances for the purposes of the Land Purchase Acts may, subject to the provisions of this section, be made in whole or in part by means of stock in the manner and under the circumstances for which provision is made by this section.

(2) For the purpose of carrying into effect pending purchase agreements, advances may, if the vendor agrees, be made by means of the issue to the prescribed persons, in the prescribed manner, and subject to the prescribed conditions, of such an amount of guaranteed two-and-three-quarters per cent. stock as, at the market price of the day of issue (as certified in the prescribed manner), is equivalent to the sum to be advanced if that price is not below ninety-two pounds (ex-dividend) for an amount of stock of the nominal value of a hundred pounds, or, if the stock is below that price, by the issue of such an amount of stock as would be equivalent to the sum to be advanced if the stock were at that price.

(3) For the purpose of carrying into effect future purchase agreements, advances may, if the Treasury think fit so to direct, be made by means of the issue of an amount of guaranteed three per cent. stock equal in nominal amount to the sum to be advanced and carrying dividends as from the date of the advance.

(4) Stock issued in pursuance of this section as the equivalent of an advance shall, as between the vendor and the purchaser, be accepted by the vendor as the equivalent of the corresponding amount of purchase money, and a vendor, although he is not an absolute owner, may agree to advances being made by stock under this section for the purpose of carrying out any pending purchase agreements, and any person having power to sell under the Land Purchase Acts, although he is not an absolute owner, may enter into any future purchase agreement, notwithstanding that the purchase money may be payable in stock in pursuance of this section instead of in cash.

Regulations as
to priority.

4.—(1) Regulations may be made by the Lord Lieutenant for determining the priority in which advances, whether by means of money or of stock, or partly by means of money and partly by means of stock, may be sanctioned or made, and for allocating as

between different classes of sales the amounts from time to time available for advances.

(2) The regulations shall provide that, in determining the priority as between sales of the same class, regard shall be had, so far as is reasonably practicable, to the dates at which proceedings for the respective sales were commenced, or, in cases where proceedings are transferred from one class to another, to the dates of the respective transfers.

• (3) Every regulation made under this section shall be laid before both Houses of Parliament as soon as may be after it is made.

5.—(1) Any money which may be raised by the creation of stock under the Act of 1903 or this Act may be temporarily raised by the issue of bills or bonds in such form and for such period not exceeding seven years, and bearing such rate of interest not exceeding three per cent., as the Treasury may determine.

Temporary
borrowing by
bills or bonds.

(2) The interest on or in respect of any such bills or bonds shall be charged and paid in the same manner as the dividends on stock under section twenty-nine of the Act of 1903, and the provisions of that Act respecting the income account of the Irish Land Purchase Fund shall apply as if the interest on or in respect of the bills or bonds were dividends on stock.

(3) The principal money of any such bills or bonds shall, subject to the provisions of this Act, be repaid out of the Irish Land Purchase Fund, and, if the Capital Account of that Fund is insufficient, shall be charged on and payable out of the Consolidated Fund of the United Kingdom or the growing produce thereof.

Stock or fresh bills or bonds may be issued for the purpose of raising the principal money required when necessary.

(4) Subsections (6) and (7) of section thirty-six of the Act of 1903 (which relate to the deficiency arising from the issue of stock at a discount and the surplus arising from the issue of stock at a premium) shall apply in the case of the issue of bills or bonds under this section as they apply in the case of the issue of stock.

6.—(1) The percentage payable under section forty-eight of the Act of 1903 shall be calculated at the rates specified in the First Schedule to this Act, and, for the purposes of that section, the percentage at the rates so specified shall be deemed to be the percentage under that section :

Amendment of
provisions as to
percentage.

Provided that the percentage payable on the purchase money of an estate, which consists of or includes lands in respect of which there are purchase agreements entered into, or deemed in pursuance of this section to have been entered into, on or before the twenty-fourth day of November nineteen hundred and eight, shall (so far as the percentage is payable in respect of the purchase of those lands) be calculated at the rate of twelve per cent. instead of being calculated under this section.

(2) An agreement for the purchase of any estate or land, though not entered into on or before the twenty-fourth day of November nineteen hundred and eight, shall be deemed, for the purposes of this section, to be a purchase agreement entered into on or before that date, where on or before that date—

- (a) the vendor has lodged an originating request in manner provided by rules made under the Act of 1903 with a view to the purchase of the estate or land by the Land Commission under section six of that Act or by the Congested Districts Board under section seventy-nine of that Act; or
- (b) the vendor has accepted a preliminary estimate of price made by the Land Commission with a view to the purchase of the estate or land under sections six or eight of the Act of 1903, or entered into a preliminary agreement with the Congested Districts Board with a view to the purchase of the estate or land under section seventy-nine of that Act; or
- (c) the Land Judge in the course of proceedings in which the estate or land is eventually sold to the Land Commission under section seven, or to the Congested Districts Board under section seventy-seven, of the Act of 1903, has caused the Commission or Board to be furnished with particulars and documents respecting the estate or land in pursuance of either of these sections; or
- (d) the Estates Commissioners have made an offer for the purchase of the estate or land under subsection (4) of section two of the Evicted Tenants (Ireland) Act, 1907.

7 Edw. 7. c. 56.

(3) So much of section forty-seven of the Act of 1903 as limits the total of the sums payable to the Land Purchase Aid Fund to twelve million pounds shall cease to have effect.

Provision as to making good deficiency in respect of stock issued at a discount.

7.—(1) The charge on the Guarantee Fund for any deficiency in respect of the issue of stock or bills or bonds at a discount shall extend only to the amount of the Ireland Development Grant which forms part of the cash portion of that fund; and the deficiency, so far as is not made good out of that amount, shall be made good out of moneys provided by Parliament.

(2) Any deficiency in respect of interest or sinking fund, arising by reason of money being raised by means of three per cent. stock for the purpose of advances in respect of which interest is payable by the Land Commission to the National Debt Commissioners at the rate of two-and-three-quarters per cent. only, shall be made good in the same manner as a deficiency arising in respect of the issue of stock at a discount is to be made good under subsection (6) of section thirty-six of the Act of 1903, as amended by this section.

8.—(1) Where stock is created for the purposes of the Land Purchase Acts, and issued under conditions which provide that the money to be raised thereby shall be paid up by instalments, dividends may be paid on the total nominal amount of the stock from any date fixed at the time of issue, although the instalments, or some or one of them, may not have been payable until after that date; and, if the amount so paid by way of dividend exceeds the sum which would have been payable on the portion of the stock representing the money actually paid up, the difference shall be treated as part of the expenses of the issue of the stock.

Bonus dividend to be treated as expenses of issue of stock.

(2) This section shall apply to any stock created and issued since the first day of July nineteen hundred and eight, as well as to stock issued after the passing of this Act.

9.—(1) Any person to whom an advance is made after the passing of this Act shall pay on the first gale day on which any payment in respect of the advance is due (in addition to the interest, or instalment of purchase annuity, due on that day), interest on the advance in respect of the period between the said gale day and the day on which the next dividends are payable in respect of the stock issued under the Act of 1903 or this Act.

Advance dividend.

(2) The interest payable shall be at the rate at which the Land Commission pay interest to the National Debt Commissioners in respect of the advance, and shall be recoverable as if it were part of the purchase annuity.

10.—(1) The exemption from stamp duty given by section twenty-three of the Labourers (Ireland) Act, 1906, shall extend to any stamp duty payable on any mortgage or other security given by a rural district council in respect of an advance by the Irish Land Commission under section sixteen of that Act, or payable under section eight of the Finance Act, 1899, in respect of such an advance as being loan capital within the meaning of that section.

Remission of stamp duty.
6 Edw. 7. c. 37.

(2) The Commissioners of Inland Revenue may remit any such duty which has become payable since the commencement of the Labourers (Ireland) Act, 1906, and return any such duty which has been paid since that date and before the passing of this Act.

62 & 63 Vict.
c. 9.

(3) The exemption from stamp duty under section fifty of the Act of 1903 shall extend to any instruments the stamp duty on which is payable as expenses of the Land Commission in the same manner as it applies to the instruments mentioned in that section.

11.—(1) Advances made under section sixteen of the Labourers (Ireland) Act, 1906 (which are by virtue of that section repayable in like manner as advances under the Land Purchase Acts), shall, whether made before or after the passing of this Act, be repayable in like manner as advances made in pursuance of pending purchase agreements, and, as respects all

Repayment of advances under Labourers (Ireland) Act, 1906.
6 Edw. 7. c. 37.

such advances, the rate of interest paid by the Land Commission to the National Debt Commissioners shall be two-and-three-quarters per cent. per annum.

(2) The payment charged on the Ireland Development Grant under section seventeen of the Labourers (Ireland) Act, 1906, shall, so far as that grant is insufficient to meet the payment, be defrayed out of moneys provided by Parliament instead of being charged upon that grant: Provided, that the total amount of the payment to be charged on the said grant, or to be defrayed out of moneys provided by Parliament, shall not exceed twenty-eight thousand pounds in any year.

Substituted
agreements.

12.—(1) Where by reason of the death of the purchaser or the transmission of the purchaser's interest in a holding, or in pursuance of a declaration of the Land Commission under section fifteen of the Act of 1903 with respect to a sub-tenancy or a sub-divided holding, or in consequence of any direction of the Land Commission, a fresh purchase agreement is entered into in substitution for an original purchase agreement previously made, any such fresh agreement shall, for the purposes of this Part of this Act, be deemed to be substituted for the original agreement, and, whenever lodged with the Land Commission, to have been lodged with the Land Commission at the date on which the original agreement was so lodged.

(2) Where a vendor at the request of the Land Commission enters into an agreement with the Land Commission or the Congested Districts Board for the sale to them of an estate consisting of or including lands which he has proposed to sell to persons other than that Commission or Board, and in respect of which purchase agreements have been lodged with the Land Commission on or before the twenty-fourth day of November nineteen hundred and eight, the percentage payable on the purchase money of the estate, or on that portion thereof which represents the purchase money of those lands (in the case of an estate comprising other lands) shall, so far as the purchase money or the portion of the purchase money is not in excess of the aggregate of the purchase money fixed by the original agreements, be calculated in the like manner, and the purchase annuities payable on the re-sale of those lands shall be payable at the like rate, as if the agreement for the sale of the estate had been entered into on or before the twenty-fourth day of November nineteen hundred and eight.

Interpretation.

13. In this Part of this Act, unless the context otherwise requires,—

(a) The expression “pending purchase agreements” means agreements lodged with the Land Commission on or before the fifteenth day of September nineteen hundred and nine, or entered into on or before that date by or with the Land Commission or the Land Judge or the Congested Districts Board ;

- (b) The expression "future purchase agreements" means agreements lodged with the Land Commission or entered into by or with the Land Commission or the Land Judge or the Congested Districts Board after that date:

Provided that purchase agreements entered into at any time on the re-sale by the Land Commission or Congested Districts Board—

(i) of land purchased or agreed to be purchased by them on or before the fifteenth day of September nineteen hundred and nine; or

(ii) of land being land in respect of which, or comprised in an estate in respect of which, a purchase agreement, though not actually entered into on or before the twenty-fourth day of November nineteen hundred and eight, is deemed for the purposes of the provisions of this Part of this Act relating to the percentage payable under the Act of 1903, to have been entered into on or before that date;

shall be treated for the purposes of this Part of this Act as pending purchase agreements and not as future purchase agreements;

- (c) An order of the Land Judge under section seven or section seventy-seven of the Act of 1903 vesting any land in the Land Commission or the Congested Districts Board, and an order of the Estates Commissioners vesting land in the Land Commission under section two of the Evicted Tenants (Ireland) Act, 1907, shall for the purposes of this Part of this Act be treated as an agreement entered into by that Commission or Board as the case may be; 7 Edw. 7. c. 56.
- (d) The expression "prescribed" means prescribed by the Treasury.

14. The power of making rules conferred on the Treasury by the Land Purchase Acts shall extend to the making of rules Power to make rules. for carrying the provisions of this Part of this Act into effect, and for adapting to the requirements of this Act such provisions of the Land Purchase Acts or any other enactment passed prior to this Act as relate to land purchase finance.

PART II.

LAND PURCHASE.

15.—(1) No advance exceeding the sum of three thousand pounds shall be sanctioned under the Land Purchase Acts to any tenant, in pursuance of an agreement for the purchase of a holding entered into after the passing of this Act, unless (a) the Limitation on amount of advances to tenant purchasers.

tenant resides on the holding, or such holding is ordinarily used with the holding on which the tenant resides; and (b) the Land Commission consider that an advance of a larger amount not exceeding five thousand pounds may properly be sanctioned.

(2) A person shall be deemed to reside on a holding within the meaning of this section if he occupies a house in the immediate neighbourhood for the purpose of working or managing the holding.

51 & 52 Vict.
c. 49.

(3) Section two of the Purchase of Land (Ireland) Amendment Act, 1888, and subsection (4) of section one of the Act of 1903, shall cease to have effect save as regards advances in pursuance of purchase agreements entered into before the passing of this Act.

Prohibition of
advance.

16.—(1) No advance shall be made under the Land Purchase Acts in respect of the purchase of a holding if the tenancy was created after the fifteenth day of September in the year nineteen hundred and nine.

(2) This section shall not apply to tenancies created by the Land Commission or by the Congested Districts Board.

Advances for
purchase of
parcels of land

17.—(1) In the case of the sale of an estate to the Land Commission, advances under the Land Purchase Acts may be made for the purchase of parcels thereof by the following persons :—

- (a) A person being the tenant or proprietor of a holding not exceeding ten pounds in rateable value;
- (b) A person who has surrendered his holding for the purpose of relieving congestion;
- (c) A person who, within twenty-five years before the passing of the Act of 1903, was the tenant of a holding to which the Land Law Acts apply, and who is not at the date of the purchase the tenant or proprietor of that holding, or, in case such person is dead, a person nominated by the Land Commission as his personal representative; and
- (d) Any person to whom in the opinion of the Land Commission, after adequate provision has been made to satisfy the requirements of the persons mentioned in the preceding paragraphs of this subsection, an advance ought to be made:

(2) Advances under this section shall not, together with the amount (if any) of any advance under the Land Purchase Acts, which has been made and is then unrepaid by the purchaser, or for which an application by the purchaser is pending, exceed one thousand pounds: Provided that the limitation in this subsection may, subject to the other limitations in the Land Purchase Acts, be exceeded, where the Land Commission consider that a larger advance may be sanctioned to any purchaser without prejudice to the wants and circumstances of other persons residing in the neighbourhood.

(3) The Land Purchase Acts shall, subject to the provisions of this section, apply to the sale of a parcel of land in pursuance of this section in like manner as if the same was a holding and the purchaser was the tenant thereof at the time of his making the purchase; and the expression "holding" in those Acts shall include a parcel of land in respect of the purchase of which an advance has been made in pursuance of this section.

(4) Section two of the Act of 1903 shall cease to have effect save as regards the sale of any parcels of land in respect of which purchase agreements have been entered into before the passing of this Act, and, save as aforesaid, any reference in any enactment to that section shall be construed as a reference to this section.

18.—(1) It shall be lawful for the Department of Agriculture and Technical Instruction for Ireland, or the council of any county or of any rural district, to purchase any parcel of an estate under section four of the Act of 1903 for any of the purposes mentioned in that section, and the said Department or any such council, or any other body corporate having power to acquire land, may act as trustees for those purposes, and may obtain advances for the purchase.

Trustees for the purposes of turbarry, pasture, &c.

(2) Where any land is purchased by the said Department or a county council or rural district council under this section, the scheme for the user of the land mentioned in section twenty of the Act of 1903 shall be framed or approved of by the Department, and the requirements of that section with regard to the framing or approval of the scheme by the Lord Lieutenant shall not apply.

(3) Where land is purchased by a county council or rural district council under this section, the amounts required for payment of the instalments of the purchase annuity shall be raised in the case of the county council as a county at large charge, and in the case of the rural district council as a district charge.

(4) It is hereby declared that the provisions of section four and of section twenty of the Act of 1903, as amended by this section, apply as well in the case of the sale of an estate to the Congested Districts Board as in the case of the sale of an estate to persons other than the Congested Districts Board.

19.—(1) Where a parcel of an estate is purchased or proposed to be purchased by trustees under section four of the Act of 1903 for the purpose of the planting of trees or the preservation of woods or plantations, and the parcel is subject to any grazing or other rights or easements appurtenant to holdings on the estate, the Land Commission may, if they think fit, on the application of the trustees, make an order releasing that parcel from all or any of those rights and easements upon such terms as to compensation and otherwise as may be agreed upon by the parties interested or, in default of agreement, may be determined by the Land Commission; and any such order shall be effectual

Facilities for the planting and preservation of woods.

to release the parcel from those rights and easements in the manner and to the extent therein specified.

(2) Where any land is resold to the owner of an estate in pursuance of section three or section seventy-six of the Act of 1903, and the land is subject to any such rights or easements as aforesaid, the Land Commission may on the application of the owner exercise the powers conferred on them by the last preceding subsection as regards those rights and easements, if and so far as they are satisfied that the land, or portion thereof, is required by the owner for any of the said purposes.

(3) The Land Commission, on the application in the prescribed manner of any landlord who is desirous of selling an estate under the Land Purchase Acts, if they are satisfied that it is desirable that the landlord should be authorised to resume a portion of a holding upon the estate for the purpose of planting trees or preserving woods or plantations or growing timber, and that the value of the holding will not be materially diminished by reason of the resumption, may authorise the landlord to resume that portion upon such terms as may be approved of by the Land Commission, including full compensation to the tenant, and may make an order accordingly apportioning the rent and discharging that portion of the holding from the tenancy.

Congested
estates.

20.—(1) In subsection (5) of section six of the Act of 1903 (which defines a congested estate) “seven pounds” shall be substituted for “five pounds”; and the consent of the owner required by subsection (4) of that section shall cease to be required.

(2) Where an estate not being a congested estate within the meaning of the said section as so amended comprises within its area one or more congested townlands, the Land Commission, or, in the case of townlands situated in a congested district county, the Congested Districts Board, may declare all or any one or more of such townlands to be a separate estate for the purposes of the Land Purchase Acts, and such townland or townlands shall thereupon be deemed for those purposes to be a separate congested estate.

(3) An estate which consists exclusively of one or more congested townlands shall be deemed to be a congested estate.

(4) The expression “congested townland” means a townland in which more than one half of the holdings are—

(a) congested holdings; or

(b) holdings whose aggregate rateable value when divided by their number gives a sum of less than seven pounds for each holding :

The expression “congested holding” means—

(a) a holding not exceeding seven pounds in rateable value; or

(b) a holding held in rundale or intermixed plots.

21. The powers for facilitating re-sales conferred on the Congested Districts Board by section one of the Congested Districts Board (Ireland) Act, 1901, and on the Land Commission by section twelve of the Act of 1903, may be exercised whether the request mentioned in the said section one or in section eighty-two of the Act of 1903 is or is not made.

Powers for
facilitating re-
sales.
1 Edw. 7. c. 34.

22. The powers of the Land Commission under section twenty-two of the Act of 1903 to determine disputes between proprietors of holdings may be exercised on the application, in the prescribed manner, of any tenants on an estate in respect of which purchase agreements have been entered into or negotiations for sale are pending, and the provisions of that section shall apply accordingly in like manner as if the tenants were proprietors of holdings.

Power of Land
Commission to
determine dis-
putes between
tenants of
holdings.

23.—(1) When an estate is purchased or agreed to be purchased by the Land Commission or the Congested Districts Board, any person having power under the Land Purchase Acts to enter into an agreement for the purchase of a holding on the estate shall have power in the prescribed manner to enter into an agreement with the Land Commission or the Congested Districts Board, as the case may be, for the exchange of the holding for any other holding which is in the opinion of the Commission or the Board of not less value than the original holding, and to surrender the original holding to the Commission or the Board accordingly.

Power to ex-
change tenan-
cies.

(2) Upon the surrender of a holding by any person under this section, all charges, liabilities, and equities affecting the tenant's interest in the holding shall, without any conveyance or order, be transferred to the interest acquired by that person in the new holding.

(3) The lands comprised in the original holding shall, notwithstanding the surrender of the holding, continue to be subject to all easements and profits a prendre to which they were subject at the time of the surrender.

(4) For the purpose of any application or order under subsection (6) of section one of the Congested Districts Board (Ireland) Act, 1901, with respect to charges, liabilities, and equities affecting the tenant's interest in a holding, it shall not be necessary to specify the several charges, liabilities, and equities, or any of them.

1 Edw. 7. c. 34.

(5) When a holding to which any charges, liabilities, or equities have been transferred, whether under this section or under section one of the Congested Districts Board (Ireland) Act, 1901, is sold under the Land Purchase Acts, the particulars to be transmitted to the registering authority pursuant to section thirty-two of the Act of 1896 shall include particulars of the original holding from which the charges, liabilities, or equities have been transferred, and, where the registering authority in any such case dispenses with the ascertainment of burdens, the note which he is required to make under subsection three of

1 Edw. 7. c. 34.

51 & 55 Vict.
c. 66.

section twenty-nine of the Local Registration of Title (Ireland) Act, 1891, shall contain such modifications or additions as may be necessary for the purpose of protecting any transferred charges, liabilities, or equities.

Amendment of
59 & 60 Vict.
c. 47. s. 35.

24. Where the tenant of any holding charged with the repayment of any moneys expended or to be expended by the Land Commission or the Congested Districts Board in erecting or improving buildings on the holding enters into an agreement with the Commission or the Board for the purchase of the holding under the Land Purchase Acts, he shall not by reason of anything contained in section thirty-five of the Act of 1896 be discharged from liability in respect of that charge.

Certain powers
and duties of
Land Commis-
sion to be ex-
ercised by
Estates Com-
missioners.

25. The jurisdiction, powers, and duties of the Land Commission under the foregoing provisions of this Part of this Act shall be exercised and performed exclusively by the Estates Commissioners.

Investment of
purchase
money on sales
to Land Com-
mission.

26. Where an estate is vested in the Land Commission by a vesting order made by them, the purchase money may be paid into the Bank of Ireland and invested in like manner as if the estate had been sold to persons other than the Land Commission, and the provisions of subsection three of section twenty-four of the Act of 1903 shall apply in the case of every sale to the Land Commission where the purchase money has been invested under this section.

Restriction on
amount ex-
pended by
Land Commis-
sion on pur-
chase of con-
gested estates.

27. Without prejudice to any restriction under subsection (2) of section nine of the Act of 1903, the Land Commission shall not in any one year enter into agreements for the purchase of congested estates which will involve, according to their estimates, a total loss on the re-sale of the estates of a greater sum than that which may be fixed by the Treasury for that year.

Provision of
money for ex-
penditure on
improvements
by Land Com-
mission, and
closing of re-
serve fund.

28.—(1) When the reserve fund established under paragraph (b) of subsection (2) of section five of the Act of 1891 is exhausted, any money required by the Land Commission for the exercise of their powers under subsection (1) of section twelve of the Act of 1903 shall, up to an amount approved by the Treasury in each year, be paid out of moneys provided by Parliament.

(2) The said reserve fund shall, when it is exhausted, cease to exist as a separate fund, and any sums, which under any Act or otherwise are to be paid into that reserve fund, shall be paid into the Exchequer.

Provision as to
money spent
by Land Com-
mission on im-
provements of
estates pur-
chased by
them.

29.—(1) Regulations made by the Treasury may provide that where the Land Commission have expended money on the improvement of an estate purchased by them, and on the re-sale of the estate the sums realised by them exceed the sum originally advanced from the Irish Land Purchase Fund for the

purchase of the estate, the National Debt Commissioners may advance to the Land Commission a sum equal to the excess, or, if that sum exceeds the amount expended by the Land Commission on the improvements, a sum equal to the amount so expended, for repayment to the reserve fund if that fund has not been exhausted, and, if that fund has been exhausted, for repayment to the Exchequer.

(2) Where the amount realised by the Land Commission on the re-sale of a congested estate, or of an estate not being a congested estate on the improvement of which the Land Commission have expended money, is less than the sum originally advanced from the Irish Land Purchase Fund for the purchase of the estate, the deficiency in the case of a congested estate, and, in the case of an estate not being a congested estate, so much of the deficiency as does not exceed the amount so expended on improvements, shall be charged or remain charged, as the case requires, upon the reserve fund, if that fund has not been exhausted, and, if that fund has been exhausted, or so far as that fund is not sufficient for the purpose, shall be paid out of moneys provided by Parliament, and credited in manner directed by the Treasury to the Irish Land Purchase Fund.

(3) Subsection (3) of section forty-three of the Act of 1903 shall cease to have effect.

30.—(1) Where the Land Commission deem it expedient to expend any money on the improvement of a holding sold or agreed to be sold by a landlord to a tenant, they may, in accordance with regulations to be made by the Treasury, enter into an agreement with the tenant for the repayment of the money so expended in the same manner as if such money was advanced under the Land Purchase Acts for the purchase of the holding, and the said money shall be repaid by an additional annuity accordingly.

Expenses of improvements by Land Commission on land sold by landlord to tenant.

(2) So far as circumstances admit the additional annuity shall, in accordance with regulations to be made by the Treasury, be consolidated and made payable with the purchase annuity.

(3) Regulations made by the Treasury may provide that, where the repayment of any money expended by the Land Commission is secured by an additional annuity under this section, the National Debt Commissioners may advance to the Land Commission the said money for repayment to the reserve fund if that fund has not been exhausted, and, if that fund has been exhausted, for repayment to the Exchequer.

31. For the purposes of subsection (4) of section forty-eight of the Act of 1903, an estate shall be deemed to be so circumstanced that it would, independently of the Act of 1896, be sold without the consent of the owner as to price if the consent of the person who is owner would not be required in his

Amendment of 3 Edw. 7. c. 37. s. 48 (4).

capacity as owner, notwithstanding that his consent might be required in the capacity of incumbrancer or some other capacity.

Amendment of
3 Edw. 7. c. 37.
s. 54.

32.—(1) As between the Land Commission and the proprietor for the time being of any holding for the purchase of which the Land Commission have, after the passing of this Act, made any advance under the Land Purchase Acts, the following conditions shall be imposed in addition to the conditions mentioned in section fifty-four of the Act of 1903, namely:—

(a) The proprietor shall not without the consent of the Land Commission acquire by purchase any other holding for the purchase of which an advance has been made under the Land Purchase Acts if the amount of that advance then outstanding, when added to the amount of the advance or advances made in respect of the holding or holdings then held by the proprietor, would exceed the sum of seven thousand pounds, and, if any proprietor acquires any holding in violation of this condition, the Land Commission may cause that holding to be sold :

(b) The proprietor shall not, without the consent in writing in the prescribed form of the Department of Agriculture and Technical Instruction for Ireland, cut down or uproot, or permit to be cut down or uprooted, any tree (other than a fruit tree or osier) upon the holding which is necessary for the ornament or shelter of the holding ; and, if any such tree is cut down or uprooted in violation of this condition, the proprietor shall be guilty of an offence under this Act, and shall be liable on summary conviction to a penalty not exceeding five pounds for each tree so cut down or uprooted, unless he satisfies the Court that he received the prescribed consent.

(2) Where, after the passing of this Act, a tenant enters into an agreement for the purchase of his holding under the said Acts, the foregoing condition with respect to the cutting and uprooting of trees shall, as from the date of the agreement, apply to the holding in like manner as if the advance had been made, unless and until the application for an advance is refused or withdrawn.

(3) Subsection (2) and subsection (3) of section thirty of the Act of 1881, as amended by any enactment, shall apply to any sale by the Land Commission under this section.

(4) When the whole of the advance made for the purchase of a holding under the Land Purchase Acts has been repaid, the conditions imposed by this section, or by section fifty-four of the Act of 1903, shall cease to have effect as regards the holding or the proprietor thereof.

Application of
3 Edw. 7. c. 37.
s. 67 (3).

33. Subsection (3) of section sixty-seven of the Act of 1903 shall not apply to any land or holding subject to a purchase annuity unless the Land Commission deem it expedient, having

regard to the situation, size, and character of such land or holding, to apply the provisions of the said subsection thereto.

34. The Land Commission, where interest on the purchase money of any holding is payable to them, shall have for the recovery of such interest the same remedies as they have for the recovery of unpaid instalments of a purchase annuity. Recovery of interest.

35. The provisions of subsection (2) of section sixty-nine of the Act of 1903 (relative to the appointment by the Land Commission of an administrator of a deceased applicant for an advance) shall apply in any case where the applicant dies before the advance is made. Extension of 3 Edw. 7, c. 37 s. 69 (2).

36. Where interest on the purchase money of any land agreed to be sold under the Land Purchase Acts is payable— Payments out of interest on purchase money before vesting.

(a) to the Land Commission under section thirty-five of the Act of 1896; or

(b) by the Land Commission or Congested Districts Board under section eighteen of the Act of 1903 as extended by this Act,

the owner of any superior or intervening interest or any incumbrancer may, at any time before the land is vested in the purchaser or purchasers, apply to the Land Commission for an order that payment in respect of the annual income of his claim be made to him out of the interest on the purchase money, and in such case the Commission, if they are satisfied that the justice of the case so requires, may make the order accordingly.

37.—(1) The powers conferred on the Land Commission by section one of the Irish Land Act, 1907, for the purpose of the disposal of the mining rights mentioned in that section shall include a power to demise such rights to any person by way of take note or prospecting lease for any term not exceeding two years, at such rent and upon such conditions as the Land Commission think proper, with an option to the lessee to take a reversionary lease upon the like or such other terms as may be agreed on. Amendment of 7 Edw. 7, c. 38.

(2) On any demise under the said Act of 1907 as amended by this section, a royalty rent variable according to the price or value of the minerals gotten, or a fixed rent, or both, may be reserved to the Land Commission.

(3) It shall not be obligatory upon the Land Commission to publish the advertisement mentioned in subsection (5) of section one of the said Act on granting any such reversionary lease, if an advertisement has been published pursuant to that subsection before the execution of the take note or prospecting lease.

38.—(1) Where any land purchased by means of an advance under the Land Purchase Acts is settled land within the meaning of the Settled Land Acts, 1882 to 1890, the trustees of the settlement may, on the request of the tenant for life, Powers of investment.

notwithstanding anything in the settlement to the contrary, invest the purchase money, or any part thereof, in the following manner (that is to say):—

(a) With the sanction of the Public Trustee—

(i) in any of the public stocks or funds or Government securities of any foreign government or state ;
or

(ii) in mortgages, bonds, debentures, or debenture stock charged upon the undertaking of any railway company in the United States of America, Mexico, the Argentine Republic, or Canada, which has, during each of the five years last past before the date of investment, paid a dividend on its preference stock (if any) or its ordinary stock ;

(b) and without such sanction—

(i) in the mortgages, bonds, debentures, or debenture stock of any railway company in the United Kingdom incorporated by special Act of Parliament which has, during each of the five years last past before the date of investment, paid a dividend on its preference stock (if any) or its ordinary stock, or in the preference stock of any such railway company which has, during a like period, paid a dividend on its ordinary stock ;

(ii) in the stocks or shares of any tramway or light railway, dividends upon which are guaranteed under the Tramways (Ireland) Acts, 1860 to 1900 ; or

(iii) in the stock, mortgages, bonds, debentures, or debenture stock issued or to be issued by the council of any county or urban district in the United Kingdom under the authority of any Act or Provisional Order ;

and may from time to time, subject to the like conditions, vary any such investment.

(2) The Public Trustee, in any case in which his sanction is required for an investment under this section, shall, before sanctioning the investment, satisfy himself that there is a reasonable probability that the investment will, if realised on the death of the tenant for life or the termination of the trust, produce an amount not less than the sum invested ; and the Public Trustee shall not incur any liability on account of any sanction given or withheld by him in good faith.

(3) The powers of investment conferred upon trustees by this section shall be in addition to any powers of investment conferred on them by the terms of the settlement or by Act of Parliament, and such last-mentioned powers may be exercised notwithstanding anything to the contrary in the settlement.

(4) A trustee shall not incur any liability by reason of any investment made by him in exercise of the powers conferred by this section.

(5) Subsections (1), (2), and (3) of section fifty-one of the Act of 1903 shall cease to have effect.

39. A barrister-at-law or solicitor shall not be deemed to have retired from practice by reason of his having been temporarily appointed and having acted as an examiner of the Land Commission under the provisions of the Land Purchase Acts. Examiners of title.

40. Where the immediate landlord of any holding or holdings has not an interest sufficient to constitute him a person having power to sell to tenants under the Land Purchase Acts, the next superior landlord having such an interest shall be deemed to be a person having power to sell to occupying tenants under the said Acts, notwithstanding that the said holding or holdings constitute the whole estate of such superior landlord, and section fifteen of the Act of 1903 shall apply accordingly. Provision as to immediate landlords not having power to sell.

41.—(1) Where any land sold under the Land Purchase Acts is subject to any rent reserved under a lease, and no payment on foot of such rent has been made for a period of forty years prior to such sale, such rent shall, for the purposes of such sale and the distribution of the purchase money, be deemed to have been released. Presumption of release of unpaid rent in certain cases.

(2) Where portions of any such rent have become vested in different owners, this section shall apply to any portion of such rent as if it was a separate rent.

42.—(1) The Estates Commissioners may make proposals and enter into negotiations for the purchase, under section six of the Act of 1903, of any estate not situated in a congested districts county, notwithstanding that an application has not been made to them by the owner under that section. Proposals for purchase by Estates Commissioners.

(2) For the purpose of enabling the Estates Commissioners to ascertain the boundaries, extent, and character of any congested estate or untenanted land which they propose to purchase and to estimate the price to be offered for the same, any inspectors or other persons appointed by the Commissioners may, after notice sent by post to the person who appears to the Commissioners to be the owner thereof, enter upon the estate or untenanted land and make all such inquiries and do all such things as may be necessary for the purpose aforesaid.

43.—(1) Where negotiations have been entered into or proposals have been made for the purchase under the Land Purchase Acts of any congested estate or untenanted land not situated in a congested districts county and no agreement has been arrived at, the Estates Commissioners may, if in their opinion it is desirable that the estate or untenanted land should be purchased for the purpose of relieving congestion, send in Procedure of the Estates Commissioners on failure of negotiations for purchase.

the prescribed manner to the person who appears to them to be the owner a final offer in writing for the purchase of the estate or untenanted land.

(2) The final offer shall contain the following particulars:—

(a) A description of the estate or untenanted land to which the offer relates;

(b) The amount of the price which the Estates Commissioners are willing to give for the estate or untenanted land, subject—

(i) to any public rights affecting the estate or untenanted land;

(ii) to any maintenance charges under the Public Works Acts; and

(iii) in the case of an estate, to any interests of the tenants or of persons having any claims upon those interests, and to any easements, rights, and appurtenances mentioned in section thirty-four of the Act of 1896:

but save as aforesaid, and subject to the provisions of the Act of 1903 with respect to minerals discharged from the claims of all persons who are interested in the estate or untenanted land, whether in respect of superior or intervening interests or incumbrances or otherwise; and

(c) The time within which the offer may be accepted.

(3) If within the time specified in that behalf in the final offer, the offer is accepted in writing by any person who within the prescribed period satisfies the Estates Commissioners that he may be dealt with as the owner of the estate or untenanted land under section seventeen of the Act of 1903, the offer and acceptance shall, as from the date upon which the Estates Commissioners certify that they are so satisfied, have the same effect as an agreement for the purchase of the estate or untenanted land under the said Act as amended by this Act, and the like consequences shall ensue, and the like proceedings shall be carried on, as in the case of such an agreement, save that the advance for the purpose of the purchase shall, notwithstanding anything to the contrary in this Act, be made by means of money and not by means of stock, except in cases where the vendor agrees to accept in lieu of cash an amount of guaranteed three per cent. stock equal in nominal amount to the sum to be advanced, and carrying dividends as from the date of the advance, and the Estates Commissioners agree that the advance shall be made in that manner.

(4) If the said offer is not accepted as aforesaid, the Estates Commissioners may, if they think fit, proceed to acquire the estate or untenanted land compulsorily in manner provided by Part IV. of this Act.

(5) In estimating the price to be named in the final offer, the Estates Commissioners shall have regard to the provisions of

the Act of 1903, as amended by this Act, in respect of advances, and to the prices which the tenants and other persons are willing to give for the holdings (if any) and parcels of land comprised in the estate or untenanted land.

PART III.

CONGESTED DISTRICTS.

4.—(1) From and after the appointed day the Congested Districts Board for Ireland shall be a body corporate, bearing the name of the “Congested Districts Board for Ireland,” with a capacity to acquire and hold land and to sue and be sued by its corporate name. Incorporation of the Congested Districts Board.

(2) The Board shall have an official seal, which shall be officially and judicially noticed, and such seal shall be authenticated by the signature of a permanent member of the Board or of the secretary.

(3) In the execution or performance of any power or duty conferred upon or transferred to the Board, by or in pursuance of any enactment, the Board shall adopt and use the style and seal of the Congested Districts Board for Ireland.

(4) The powers and duties of the trustees of the Congested Districts Board for Ireland under any enactment shall on the appointed day be transferred to the Board.

(5) Subsection (3) of section thirty-four of the Act of 1891 and subsections (2) and (3) of section two of the Congested Districts Board (Ireland) Act, 1893, shall cease to have effect as from the appointed day. 56 & 57 Vict. c. 35.

45.—(1) From and after the appointed day, the Congested Districts Board shall consist of the following members:— Reconstitution of the Board.

(a) The Chief Secretary, the Under Secretary to the Lord Lieutenant, and the Vice-President of the Department of Agriculture and Technical Instruction for Ireland, who shall be ex-officio members:

(b) Nine members appointed by His Majesty (in this Act referred to as appointed members):

(c) Two paid members appointed by His Majesty (in this Act referred to as permanent members).

(2) An appointed member shall hold office for five years, and shall be eligible for re-appointment. On a casual vacancy occurring by reason of the death, resignation, or incapacity of an appointed member or otherwise, the person appointed by His Majesty to fill the vacancy shall continue in office until the member in whose place he was appointed would have retired, and shall then retire.

(3) Each of the permanent members shall hold office during pleasure, and shall be paid by the Board out of the funds at their disposal an annual salary of two thousand pounds:

Provided that a permanent member shall not be removed from his office except by an Order in Council, and any such

Order shall be laid before each House of Parliament forthwith, and, if an Address is presented to His Majesty by either House of Parliament within the next subsequent forty days on which that House has sat after any such Order is laid before it praying that the Order may be annulled, His Majesty in Council may annul the Order, and it shall thenceforth be void.

(4) Every existing member of the Congested Districts Board who is not an ex-officio member, or is not appointed under or in pursuance of this section, shall cease to hold office on the appointed day.

Congested districts counties and local authorities.

46.—(1) For the purposes of the Congested Districts Board (Ireland) Acts, as amended by this Act, each of the following administrative counties, that is to say, the counties of Donegal, Sligo, Leitrim, Roscommon, Mayo, Galway, and Kerry, shall be a congested districts county, the six rural districts of Ballyvaghan, Ennistymon, Kilrush, Scariff, Tulla, and Killadysert in the county of Clare, shall together form one congested districts county, and the four rural districts of Bantry, Castletown, Schull, and Skibbereen, in the county of Cork, shall together form one congested districts county.

(2) No electoral division shall, after the passing of this Act, be or form part of a congested districts county, unless it is included in a congested districts county constituted under this section.

Transfer of certain powers and duties of the Board to the Department of Agriculture.

47. The powers and duties of the Congested Districts Board under any enactment, so far as they relate to any of the following matters; namely:—

- (a) The provision of seed potatoes or seed oats;
- (b) Agricultural instruction or practical husbandry; or
- (c) The aiding and developing of forestry or the breeding of live stock or poultry;

shall on the appointed day be transferred to the Department of Agriculture and Technical Instruction for Ireland (in this Part of this Act referred to as the Department) and shall from that day cease to be exercised or performed by the Board.

Consultative Committee for purposes of fisheries.

48. For the purpose of advising the Department and the Congested Districts Board with a view to the co-ordination of the administration of the business of the Department and the Board respectively in relation to the aiding and developing of sea fisheries in areas in which they have concurrent powers or duties, there shall be a consultative committee consisting of six members, of whom three shall be nominated by the Department, and three shall be nominated by the Board.

Provision of money for Board and Department of Agriculture.

49. As from the appointed day, an annual sum of one hundred and sixty-three thousand seven hundred and fifty pounds shall be paid out of moneys provided by Parliament, as follows:—

Out of that sum an annual sum of nineteen thousand pounds shall be paid to the Department for the purpose of the

exercise of the powers and the performance of the duties transferred to the Department under this Act, and the residue shall be paid to the Congested Districts Board :

Provided that at any time after the expiration of five years from the appointed day the Lord Lieutenant may, on the application of the Department or the Board, from time to time direct that the amount payable to the Department for the purpose aforesaid shall be increased or reduced, and the increased or reduced amount shall as from the date fixed by the Lord Lieutenant be the amount payable to the Department under this section.

50.—(1) Where any powers and duties are transferred by this Part of this Act from one authority to another authority—

Provisions consequential on transfer of powers and duties.

- (i) all property, whether real or personal (including easements and rights and things in action), held by or in trust for or vested in the first authority for the purpose or by virtue of those powers and duties, shall without any conveyance or assurance pass to and vest in the other authority, subject to all debts and liabilities affecting the same ; and
- (ii) the latter authority shall hold the property for the estate, interest, and purposes, and subject to the covenants, conditions, and restrictions, for and subject to which the property would have been held if this Act had not passed, so far as the same are not modified by or in pursuance of this Act ; and
- (iii) all debts and liabilities of the first authority incurred by virtue of those powers and duties shall become debts and liabilities of the latter authority ; and
- (iv) in any proceedings relating to those powers and duties, and pending at the time of the transfer to which the first authority is a party, the latter authority shall be substituted for the first authority, and the proceedings shall not abate by reason of the substitution ; and
- (v) any reference to the first authority in any enactment, order, instrument, contract, or other document, in relation to those powers or duties, shall, so far as is necessary for the exercise of those powers or the discharge of those duties, be construed as a reference to the latter authority.

(2) The expression “ authority ” in this section means the Congested Districts Board, the Department, and the trustees of the Congested Districts Board.

51.—(1) The Lord Lieutenant, by Order in Council, may do all or any of the following things (that is to say) :—

Orders in Council.

- (i) Regulate the proceedings and meetings (including quorum) of the Congested Districts Board ;
- (ii) Regulate and define the powers and duties of the permanent members ;

- (iii) Make such regulations as appear to him necessary or expedient for carrying into effect this Part of this Act.

(2) An Order of the Lord Lieutenant in Council under this section shall be laid before both Houses of Parliament as soon as may be after it is made, and, if within the next subsequent forty days on which either House has sat that House presents an address to His Majesty praying that any such Order may either in whole or in part be annulled, His Majesty in Council may annul the same either in whole or in part as the case may require, and the Order or part so annulled shall thenceforth become void without prejudice to the validity of any proceedings taken under the same in the meantime :

Provided that where any Order or any part thereof is so annulled, the Lord Lieutenant in Council may within six months thereof make another Order in place of the Order or part so annulled, subject nevertheless to be laid before Parliament, and to be annulled by His Majesty in Council in manner above mentioned, and so on as often as the case requires.

Grant of super-
annuation al-
lowances by
Congested Dis-
tricts Board.

52.—(1) It shall be lawful for the Congested Districts Board, with the approval of the Treasury, to grant to any permanent member of the Board on retirement such superannuation or other allowance (if any) as he would have been qualified for under the provisions of the Superannuation Acts, 1834 to 1892, or any Acts amending the same, if he were retiring from the permanent Civil Service of the State. Any such allowance shall be payable out of the funds at the disposal of the Board : Provided that, where a permanent member was at the time of his appointment a permanent Civil Servant of the State, such portion of the allowance as the Treasury determine to be properly payable in respect of his previous service in that capacity shall be payable in the same manner as a superannuation or other allowance under those Acts.

(2) The Congested Districts Board may, with the approval of the Treasury, make a scheme providing for the grant of pensions or gratuities, according to the scale and subject to the conditions (so far as applicable) prescribed by the Superannuation Acts, 1834 to 1892, or any Acts amending the same, to such officers or persons employed by them, not being otherwise pensionable, as may be from time to time approved by the Treasury ; and the Board may pay to any such officers or persons out of the funds at their disposal such pensions or gratuities under the scheme as the Treasury may sanction in each case.

Sales of parcels
of land by Con-
gested Dis-
tricts Board.

53.—(1) The Board may sell any parcels of any land purchased by them after the passing of this Act to any tenants or proprietors of holdings in a congested districts county, or to any herdsmen employed on or in connection with the land.

(2) The provisions of this Act with respect to the application of the Land Purchase Acts to parcels of land shall apply in the case of the sale of any parcel of land under this section.

(3) Section seventy-five of the Act of 1903 shall cease to have effect, save as respects sales of parcels of land purchased by the Board before the passing of this Act.

54. Where an estate is purchased by the Congested Districts Board, and tenants on the estate to the extent of three-fourths in number and rateable value have agreed to purchase their holdings, the Board may order that the remaining tenants or any of them shall be deemed to have accepted the offers made to them by the Board in any case where, under section eighty of the Act of 1903, the tenant could have obtained an advance of the entire purchase money and the Land Purchase Acts shall apply accordingly.

Extension of
3 Edw. 7. c. 37.
s. 19 to sales
by the Con-
gested Dis-
tricts Board.

55. The powers conferred on the Land Judge by sub-section (6) of section fifteen of the Act of 1903 (which relates to sub-tenancies and subdivided holdings) for the purposes of the sale of an estate by the Land Judge to the Land Commission may be exercised by the Land Judge for the purposes of the sale of an estate by him to the Congested Districts Board.

Extension of
3 Edw. 7. c. 37.
s. 15 (6) to
sales to the
Congested Dis-
tricts Board.

56. Where, after the passing of this Act, the Congested Districts Board enter into an agreement under section seventy-nine of the Act of 1903, for the purchase of an estate or untenanted land, the provisions of section eighteen of that Act (which relates to rents and profits recoverable by the Land Commission) shall apply in like manner as they apply in the case of land agreed to be purchased by the Land Commission, subject to the following modifications (that is to say):—

Rents and
profits recover-
able by the
Congested Dis-
tricts Board.

- (a) The Congested Districts Board shall be substituted for the Land Commission;
- (b) All rents and profits and arrears of rent payable to the Board shall be recoverable by the Board in like manner as if the Board were the owner of the estate or untenanted land.

57. The Congested Districts Board shall not, after the passing of this Act, enter into an agreement for the purchase of any land which is not situated in a congested districts county.

Restriction on
purchases by
the Board.

58.—(1) The Land Commission shall not, after the passing of this Act, enter into an agreement for the purchase of any land situated in a congested districts county, save with the consent of the Congested Districts Board: Provided that this subsection shall not apply in the case of any land required for the purposes of the Evicted Tenants (Ireland) Act, 1907.

Restrictions on
sales of land in
congested dis-
tricts counties.

(2) No congested estate situated in a congested districts county shall, after the passing of this Act, be sold under the Land Purchase Acts, to persons other than the Congested Districts Board without the consent of that Board, which consent shall not be withheld unless the Board undertake to enter into an agreement or to send a final offer for the purchase of the estate within one year: Provided that this subsection

7 Edw. 7. c. 56.

shall not apply in the case of any sale of a congested estate in pursuance of an originating application or request lodged before the passing of this Act.

Power to enter and inspect land with a view to purchase.

59. For the purpose of enabling the Congested Districts Board to ascertain the boundaries, extent, and character of any land which they propose to purchase under the Land Purchase Acts and to estimate the price to be offered for the same, any inspectors or other persons appointed by the Board may, after notice sent by post to the person who appears to the Board to be the owner thereof, enter upon the land and make all such inquiries and do all such things as may be necessary for the purpose aforesaid.

Procedure of the Board on failure of negotiations for purchase.

60.—(1) Where negotiations have been entered into or proposals have been made for the purchase under the Land Purchase Acts of any estate or untenanted land situated in a congested districts county, and no agreement has been arrived at, the Congested Districts Board may, if they think fit, send in the prescribed manner to the person who appears to them to be the owner a final offer in writing for the purchase of the estate or untenanted land.

(2) The provisions of Part II. of this Act with respect to the particulars to be inserted in a final offer sent by the Estates Commissioners shall apply in the case of a final offer sent by the Congested Districts Board under this section, with the substitution of the Congested Districts Board for the Estates Commissioners, and the provisions of Part II. of this Act with respect to the acceptance of a final offer sent by the Estates Commissioners shall apply in the case of the acceptance of a final offer sent by the Congested Districts Board, with the substitution of section seventy-nine of the Act of 1903 for section seventeen of that Act.

(3) If the final offer is not accepted in accordance with the foregoing provisions of this section, the Congested Districts Board may, if they think fit, send to the Estates Commissioners a requisition calling upon the Estates Commissioners to take steps to acquire the estate or untenanted land compulsorily in manner provided by Part IV. of this Act.

PART IV.

COMPULSORY PURCHASE.

Publication of notices.

61.—(1) The Estates Commissioners in any case where they propose to acquire compulsorily an estate or untenanted land—

- (a) in respect of which a final offer has been sent by them and has not been accepted in manner provided by this Act; or
- (b) in respect of which they have received a requisition under this Act from the Congested Districts Board,

shall publish in the Dublin Gazette a notice containing particulars of the final offer of the Land Commission or the Congested Districts Board as the case may be, and stating that the Estates Commissioners intend to purchase the estate or untenanted land described in the final offer at the price named in such offer, unless within the prescribed time an application is made under this Part of this Act to the Judicial Commissioner by any person interested in the estate or untenanted land.

(2) A copy of the final offer and of the aforesaid notice shall as soon as possible be served in the prescribed manner by the Estates Commissioners upon all persons known or believed by them to be interested in the estate or untenanted land.

62.—(1) If any person interested in the estate or untenanted land objects to the acquisition of the same under this Part of this Act on the ground—

Power to restrain compulsory acquisition of land.

- (a) that other land sufficient and equally suitable for the purposes for which the estate or untenanted land is proposed to be acquired is available for purchase by the Commissioners or Board, as the case may be, by voluntary agreement at a reasonable price; or
- (b) that the estate or untenanted land consists of or includes land in the occupation of the owner which is, or forms part of, a park, garden, pleasure ground, recreation ground, demesne, or home farm, or was purchased under the provisions of the Irish Church Act, 1869, for a sum not exceeding two thousand pounds; or
- (c) that the estate or untenanted land consists of or includes land which has been purchased under the Land Purchase Acts, or is the property of a local authority, or is held by any corporation or company for the purposes of a railway, dock, canal, water, or other public undertaking; or
- (d) that, if the estate or untenanted land is acquired as proposed, other land of the owner adjoining the estate or untenanted land will be injuriously affected:

32 & 33 Vict. c. 42.

he may, within the prescribed time and in the prescribed manner, apply to the Judicial Commissioner for an order restraining the Estates Commissioners from acquiring the estate or untenanted land, or any specified part or parts of the same under this Part of this Act.

(2) The Judicial Commissioner shall hear in the prescribed manner and determine all applications coming before him under this Part of this Act, and for that purpose shall have and may exercise the powers conferred on the Land Commission by subsections (1), (3), and (4) of section forty-eight of the Act of 1881, and may, if the justice of the case so requires, amend the final offer by excluding therefrom any part or parts of the lands therein described, or (with the consent of the owner and the body by whom the final offer was sent) by including therein any other lands of the owner.

(3) Where a final offer is amended by the Judicial Commissioner under this section, the body by whom the offer was sent may make such consequential amendments in the offer as appear to them to be necessary, and the offer as amended in pursuance of this section shall be deemed to be the final offer for the purpose of any subsequent proceedings under this Part of this Act.

(4) There shall be an appeal to the court of appeal from any decision of the Judicial Commissioner under this section, and the decision of the court of appeal shall be final.

(5) An order of the Judicial Commissioner or the court of appeal restraining the Estates Commissioners from acquiring land under this Part of this Act shall remain in force for five years after it is made.

(6) The expression "owner" in this section means any person having power under the Land Purchase Acts to sell the estate or untenanted land.

Applications
as to price.

63.—(1) Subject to any application to the Judicial Commissioner under the last preceding section, and to the final determination of all questions arising thereon, any person interested in the estate or untenanted land who is dissatisfied with the price named in the final offer may apply, within the prescribed time and in the prescribed manner, by way of objection to the Judicial Commissioner to fix the price to be paid for the estate or untenanted land, and, subject to the provisions of this section, the price shall be fixed by the Judicial Commissioner accordingly.

(2) In fixing the price to be paid for an estate or untenanted land, regard shall be had to the fair value of the same to the owner, but no additional allowance shall be made in respect of the purchase being compulsory.

(3) The costs and expenses of and incidental to any application under this Part of this Act shall be at the discretion of the Judicial Commissioner, and the Judicial Commissioner may, if he thinks fit, order the same to be paid by the Land Commission or the Congested Districts Board.

Completion of
purchase.

64. Subject to any application to the Judicial Commissioner under this Part of this Act, and the final determination of all questions arising thereon, the price named in the final offer or fixed as the case may be under this Part of this Act shall be deemed to be the purchase money of the estate or untenanted land, and shall, within the prescribed time, be paid into the Bank of Ireland, and the purchase shall be completed and the purchase money distributed in like manner, and all the like consequences shall ensue, as if the estate or untenanted land had been purchased by the Land Commission or the Congested Districts Board, as the case may be, by agreement entered into under the Act of 1903 as amended by this Act, upon the date of the payment of the purchase money into the Bank.

PART V.

LAND LAW.

65.—(1) Where a present tenancy was determined at any time before the passing of this Act, the Land Commission may, subject to the provisions of the Land Law Acts, on the application in the prescribed manner of any tenant in occupation of the lands comprised in the said present tenancy or of any portion of those lands, being either—

- (a) the person who was the tenant of the original holding at the time when the present tenancy was determined, or
- (b) if such person is dead, a person who would have been entitled, whether under the will or as one of the next-of-kin or issue of the said tenant, to the said holding or any distributive share therein had the present tenancy therein not been determined :

fix the fair rent in respect of the said lands or portion in like manner as if the applicant was a present tenant of the same, and the statutory term resulting from the fixing of such fair rent shall not, nor shall the tenancy, be determined by the expiration of any lease or tenancy existing at the date of such application, but shall continue in like manner as if such lease or tenancy were an existing lease within the meaning of the Act of 1881.

(2) Any provision in any contract of tenancy or other instrument in any way prohibiting, restraining, or tending to prevent the fixing of a fair rent in respect of any holding to which this section applies, shall be void.

(3) Where a present tenancy has been sold under a writ of execution and assigned by the sheriff to the landlord, or a trustee for the landlord, the tenancy shall, for the purposes of this section, be deemed to have been determined.

(4) In this section the expression “prescribed” means prescribed by rules made by the Land Commission under section fifty of the Act of 1881 as amended by any subsequent enactment, and the expression “present tenancy” includes any existing lease within the meaning of the Act of 1881, and any tenancy which was determined at any time between the first day of January eighteen hundred and seventy-nine and the passing of the Act of 1881.

PART VI.

SUPPLEMENTAL.

66. In this Act, unless the context otherwise requires,—

Definitions.

The expression “prescribed,” in any case not otherwise provided for, means prescribed by rules made by the Judicial Commissioner and the Estates Commissioners in the manner directed by subsection (13) of section twenty-three of the Act of 1903 ;

- 7 Edw. 7. c. 38. The expression "the Land Purchase Acts" includes the Land Purchase Acts as defined by the Act of 1896 and the Act of 1903, the Irish Land Act, 1907, and Parts I., II., and IV. of this Act ;
- The expression "the Land Law Acts" means the Land Law Acts as defined by the Act of 1903 and Part V. of this Act ;
- 44 & 45 Vict. c. 49. The expression "the Act of 1881" means the Land Law (Ireland) Act, 1881 ;
- 50 & 51 Vict. c. 33. The expression "the Act of 1887" means the Land Law (Ireland) Act, 1887 ;
- 54 & 55 Vict. c. 48. The expression "the Act of 1891" means the Purchase of Land (Ireland) Act, 1891 ;
- 59 & 60 Vict. c. 47. The expression "the Act of 1896" means the Land Law (Ireland) Act, 1896 ;
- 3 Edw. 7. c. 37. The expression "the Act of 1903" means the Irish Land Act, 1903 ;
- The expression "the Judicial Commissioner" means the Judicial Commissioner appointed under the Act of 1881; and
- The expression "appointed day" means such day as the Lord Lieutenant may appoint.
- Untenanted land. **67.** Land in the occupation of a person holding under a fee farm grant or a lease for lives renewable for ever, or a lease for a term of years of which not less than sixty are unexpired, shall, for the purposes of the Evicted Tenants (Ireland) Act, 1907, be deemed to be untenanted land.
- Construction. **68.** Parts I., II., and IV. of this Act shall be construed as one with the Land Purchase Acts, and may be cited with those Acts.
- Part III. of this Act shall be construed as one with the Congested Districts Board (Ireland) Acts, and may be cited with those Acts.
- Part V. of this Act shall be construed as one with the Land Law Acts, and may be cited with those Acts.
- Short title. **69.** This Act may be cited as the Irish Land Act, 1909.
- Repeals. **70.** The Acts specified in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 6.

(1) The percentage shall be a percentage on the amount advanced in respect of each holding and parcel of land comprised in the estate, and shall be calculated according to the number of years' purchase represented by the advance upon the following scale :—

Number of years' purchase represented by the Advance.			Rate of Percentage.
(1) Where the Rent is a Judicial Rent fixed or agreed to since the passing of the Act of 1896, or the Land is untenanted.	(2) Where the Rent is a Judicial Rent fixed or agreed to before the passing of the Act of 1896, or a Non-Judicial Rent.		
26 and upwards - - -	24 and upwards - - -		Nil
25 and under 26 - - -	23 and under 24 - - -		3
24 „ 25 - - -	22 „ 23 - - -		4
23 „ 24 - - -	21 „ 22 - - -		6
22 „ 23 - - -	20 „ 21 - - -		8
21 „ 22 - - -	19 „ 20 - - -		10
20 „ 21 - - -	18 „ 19 - - -		12
19 „ 20 - - -	17 „ 18 - - -		14
18 „ 19 - - -	16 „ 17 - - -		16
Under 18 - - -	Under 16 - - -		18

(2) In cases where an estate is purchased by the Estates Commissioners or the Congested Districts Board, and the advance is made in respect of the estate as a whole, the advance shall, for the purpose of the application of the scale, be apportioned between the holdings and parcels of land comprised in the estate in such manner as the Estates Commissioners or the Congested Districts Board, as the case may be, direct.

(3) In the case of the purchase of a parcel of untenanted land, and in any case where the amount advanced is less than the purchase money, the number of years' purchase represented by the advance shall be calculated in manner prescribed by the Treasury, regard being had in the case of untenanted land to the fair annual value of the land to the owner.

SECOND SCHEDULE.

Section 70.

ACTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
51 & 52 Vict. c. 49.	The Purchase of Land (Ireland) Amendment Act, 1888.	Section two, save as regards advances in pursuance of purchase agreements entered into before the passing of this Act.
54 & 55 Vict. c. 48.	The Purchase of Land (Ireland) Act, 1891.	Section thirty-four, from "consisting" to the end of the section, as from the appointed day.
56 & 57 Vict. c. 35.	The Congested Districts Board (Ireland) Act, 1893.	Subsections (2) and (3) of section two.
3 Edw. 7. c. 37.	The Irish Land Act, 1903.	In section one, subsection (4), save as regards advances in pursuance of purchase agreements entered into before the passing of this Act. Section two, save as regards sales of parcels of land in respect of which purchase agreements have been entered into before the passing of this Act. In subsection (4) of section six, the words "with the consent of the owner." Subsection (3) of section forty-three. Section forty-four. In subsection (1) of section forty-seven, from "provided" to end of subsection. Subsection (3) of section forty-eight. Subsections (1), (2), and (3) of section fifty-one. Section seventy-five, save as regards sales of parcels of land purchased by the Congested Districts Board before the passing of this Act.

CHAPTER 43.

An Act to amend the Law relating to Customs and Inland Revenue, and for other purposes connected with Finance.
[3rd December 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :